

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 14, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Absent: Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and John Ridge, Deputy City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Ms. Broyles moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 23, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Public hearing to receive public comment on a proposed trade of real property owned by the City of Cheyenne, being a parcel of land located generally east of Missile Drive and south of the right-of-way of West 22nd Street, consisting of 6,098 square feet and having an appraised value of \$6,098.00, to Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden in exchange for certain real property generally located east of Missile Drive and north of the right-of-way of West 22nd Street, Cheyenne, Wyoming, having appraised value of \$43,560.00. Pete Laybourn spoke in support of the proposed trade of property which is affiliated with a City drainage project in the vicinity. Mayor Kaysen noted that Agenda Item #22 (Resolution regarding the trade of properties) is related to the public hearing topic and further input from the public could be made at the October 21st Finance Committee meeting. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural

Residential (County) to MUR Mixed-Use Residential Emphasis for Snyder Plaza, Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of W. Allison Road) (postponed from Sept. 23, 2013). Reporting for Public Services Committee, Mr. Allen moved to withdraw the item from the agenda, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to allow, after conditional discretionary review, Service Uses, Animal Care - Hospital/Clinic in the MUB Mixed-Use Business Emphasis and the NB Neighborhood Business zone districts and to allow, as a use permitted by right, Service Uses, Animal Care - Kennel in the LI Light Industrial zone district. Troy Thompson, veterinarian, voiced his support for the ordinance. Mr. Allen moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body present. (#4000)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to MR-2 Medium Density Residential - Developing for Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, between Canyon and Ridge Roads). John Bonifer, Steil Surveying, agent for Leaning Tree Homes, requested a two week postponement to October 28, 2013. Roger Alexander and Debbie Hall, vicinity property owners, spoke in opposition to the zone change. They expressed concerns with the type of development (multi-family residential 4-plexes) planned for the site; maintaining the current predominantly single residential home environment in the area, and effect on neighborhood with regard to noise, increased vehicular traffic and potential for increase in crime. Mr. Allen reported there was no recommendation on the item from Public Services Committee. Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Mr. Allen moved to postpone to Oct. 28, 2013, seconded by Dr. Rinne. Upon inquiry, Mr. Bonifer clarified the developer requested the postponement. Discussion included the approximate number of apartment complexes located within each of the City Ward districts and the apparent need for affordable housing. Motion to postpone carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Luna voting “no”.

ORDINANCE - Pursuant to Sections 1.1.6 & 2.4.1 of the Cheyenne Unified Development Code, Repealing and Re-enacting Unified Development Code Section 2.4.2, Annexations. Mr. Allen reported there was no recommendation on the item from Public Services Committee. Mr. Allen moved to approve on second reading, seconded by Ms. Broyles. Discussion involved the purpose of the ordinance, which is to simplify the annexation process by more closely following state statute provisions, and remove redundancy from the current process. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Repealing Chapter 13.20, Wastewater and Disposal, in its entirety and re-creating Chapter 13.20, Wastewater Treatment and Disposal, of Title 13, Public Services, of the City of Cheyenne City Code. Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Comments followed regarding the purpose of the ordinance, which is to bring City

Code provisions up to date with current EPA and DEQ regulations and requirements. Upon inquiry, Jim Hughes, Water Reclamation Manager, Board of Public Utilities, advised the ordinance was prepared pursuant to 2005 revisions to the EPA's national treatment program which changed streamlining and pre-treatment rules, noting the update should make it easier for BOPU staff and community industrial users to understand, and clarified the program has not been updated for about 20 years. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending Section 9.16.070(A), sale of tobacco to persons under the age of eighteen years prohibited, of Chapter 9.16, Offenses by or against minors, of Chapter 9, Public Peace and Welfare, of the Cheyenne City Code, pertaining to electronic cigarettes. Officer John Gay, Cheyenne Police Department (CPD), advised CPD supports the proposed ordinance change and cited benefits of incorporating the state statute restriction within municipal court's jurisdiction for officer efficiency purposes; to provide the ability to verify re-occurring offenses; to have a pre-determined bond/fine schedule, and for any juvenile assistance programs that may be available through municipal court. Amy Schicketanz, owner, Straight Line Vapors, and Lisa Ammons, Wyoming Prevention Management office, each spoke in support of the ordinance to restrict sales to minors. Each discussed and provided data and statistical information on e-cigarettes as well as regular cigarette tobacco products. Ms. Schicketanz comments included the following topics: E-cigarettes as a helpful tool for those who are trying to quit smoking; lack of data reflecting that kids become addicted to e-cigarettes; her opposition to any potential future ordinance involving e-cigarettes as a tobacco product and the City's current smoking in public places regulations; nicotine and e-cigarette (cartridge(s)) ingredients and chemicals, and review of enforcement measures prior to the ordinance being implemented. In support of her comments, Ms. Schicketanz submitted a packet of data on e-cigarettes (on file with City Clerk's office) to members of the governing body. Ms. Ammons' comments included composition of e-cigarettes and how they're used (inhaled); court rulings determining e-cigarettes as tobacco products; similar laws in other states, and lack of regulation of the products by the FDA. Mr. Allen moved to approve on second reading, seconded by Ms. Broyles. Upon inquiry, John Ridge, Deputy City Attorney, clarified if a citation is written as an offense against city code rather than state statute then the fine would go to the City. Clarification was made that the ordinance would not be outlawing e-cigarettes but is aimed only at restricting sales of e-cigarettes to minors. Discussion included the following topics: "Mirroring" state statute; preventing youth from gaining access to these devices; whether fines assessed to be received by the City was overshadowing the purpose of the ordinance, and procedural benefits for police officers to be able to cite offenders into municipal court vs. circuit court. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Luna voting "no".

ORDINANCE - Amending, creating, deleting and re-creating various chapters and Sections within Title 8, Health and Safety, of the Cheyenne City Code relating to general provisions pertaining to Fire Protection and Regulations, and adoption of the International Fire Code, 2012 Edition, and certain codes and practices promulgated by the National Fire Protection Association. Mr. Shanor declared a conflict of interest (property business interest) and vacated Council Chambers. Glen Garrett, architect, advised he was asked to attend a DDA design meeting wherein the Building and Fire Departments discussed the new proposed codes and

amendments from the 2006 Code to the 2012 Code. He reviewed and discussed the following three items of concern: Retroactivity; concurrence (interdepartmental communication between Building and Fire staff), and undefined terms. His comments included local authority vs. State Fire Marshall and state statute regulations and restrictions; effect on historic buildings that may be remodeled or renovated; what constitutes a “distinct hazard”, and concern with enforcement and compliance. Mr. Allen moved to approve on second reading, seconded by Mr. Luna. Discussion included the following topics: Ordinance providing some positive changes with regard to day cares and disposal of fireworks; existing structures and conditions; omission of chief building official authority; discretion of fire chief or designated fire code official; opportunity for appeal of decisions involving interpretation of the codes, and inspection process and procedures utilized by the fire department. During discussion and upon inquiry, Mark Norford, Division Chief, Cheyenne Fire and Rescue Department, provided information on the fire code official; appeal process through the Fire Code Board of Appeals and member composition of the Board; examples of a distinct hazard scenario as well as what might constitute an “egregious” violation, and how often inspections are conducted. Mr. Garrett stated the fire code official is defined in the fire code and it could be the fire chief or their designee. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers with the exception of Ms. Williams voting “no”. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

ORDINANCE - Amending various sections contained in Chapters 8.20, 8.24, 8.28 and 8.32 within Title 8, Health and Safety, of the Cheyenne City Code relating to General Provisions pertaining to Fire Protection and Regulations. Mr. Allen moved to approve on second reading, seconded by Mr. Cook. It was noted the ordinance includes the topics of public displays of fireworks and underground storage of tanks. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Amending Chapter 2.32, Fire Department, Section 2.32.020, Department Personnel, and Chapter 2.84, Miscellaneous Boards and Commissions, Section 2.84.050, International Fire Code Board of Appeals, of Title 2, Administration and Personnel, of the Cheyenne City Code pertaining to the Fire and Rescue Department. Mr. Allen moved to approve on second reading, seconded by Mr. Cook. It was advised the ordinance is a bookkeeping clean-up to City Code sections involving Fire Department division names and titles, and the International Fire Code. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] RESOLUTION - Declaring as surplus a City-owned property located at 522 Van Lennen Avenue (All of Lots 1, 2, and 3, Block 660, South Cheyenne), together with improvements thereon, Cheyenne, Laramie County, Wyoming, and authorizing the City's Purchasing Director to proceed with the bidding process for sale of said parcel pursuant to Wyo. Stat. §15-1-112. Motion (per Consent Agenda) carried. (#5530)

RESOLUTION - Amending Resolution No. 5521 and authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding through the Downtown Development Grant and Loan Program for an elevated walkway. Mr. Brown moved to adopt, seconded by Mr. Luna. Mr. Brown moved to amend by substitute resolution, seconded by Ms. Broyles. It was clarified the amendment addresses a request from Cheyenne LEADS and Spirit Hospitality to extend the walkway lease

through 2035 to coordinate with the proposed term of Spirit Hospitality's hotel franchise agreement. Upon inquiry, Anja Bendel, Business Development Director, Cheyenne LEADS, advised this is part of the revenue recapture plan, wherein there is a grant and loan agreement through the Wyoming Business Council and a portion of the lease fee amount will be used to pay off the loan. She clarified both the public and hotel will have access to the walkway. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present. (#5531)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a final plat and development agreement for Terre Pont Subdivision, a portion of the S1/2 of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located at the northeast corner of the intersection of Prairie Avenue and Frontier Mall Drive) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Requiring the officers described in Section 2.08.010(A) of the Cheyenne City Code, other than fire chief, to submit departmental estimates of all proposed expenditures at least five months prior to the expiration of any budget approved pursuant to W.S. §16-4-111 -- referred to Finance Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk of the City of Cheyenne to enter into an agreement for the trade of real property owned by the City of Cheyenne being a parcel of land located generally east of Missile Drive and south of the right-of-way of West 22nd Street, Cheyenne, Wyoming, to Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden, in exchange for certain real property generally located east of Missile Drive and north of the right-of-way of West 22nd Street, Cheyenne, Wyoming -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Approving 'The City of Cheyenne, Wyoming, Compensation and Classification Study, Final Report,' dated October 1, 2013, prepared by the Mercer Group, Inc., and referring said study to the 'Employee Investment Study Implementation Team' created by Resolution No. 5508." -- referred to Committee of the Whole (sponsors -- Mr. Brown and Mayor Kaysen). Under other business later in the meeting, Mayor Kaysen advised the Committee of the Whole meeting will be held on Wednesday, Oct. 23, 2013 beginning at 6:00 p.m. in City Council Chambers.

[CA] RESOLUTION - Authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding for the construction of a rail spur within the Swan Ranch Industrial Park -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Contract between the City of Cheyenne, Transit Division, and Wyoming Department of Health, Aging Division, to provide supportive services to persons 60 years or older (Title III-B Program Grant). Motion (per Consent Agenda) carried. (#6071)

[CA] Contract between the City of Cheyenne, Police Department, Victim Witness Program, and the State of Wyoming, Division of Victim Services, for services to victims of crime (Victim Services grant). Motion (per Consent Agenda) carried. (#6072)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Ashley McNelly, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried (amount not to exceed \$26,585.16). (#6073)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried (amount not to exceed \$33,489.84). (#6074)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Leslie Burch, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried (amount not to exceed \$44,992.92). (#6075)

Memorandum of Understanding between the City of Cheyenne and the Friends of the Cheyenne Botanic Garden, a non-profit corporation, regarding future gifts which may be made by the Foundation to the City. Mary Keating-Scott, Treasurer, Friends of the Cheyenne Botanic Gardens Foundation, requested a two week postponement to allow time to provide additional information to the community and City Council relative to a recent editorial in a local newspaper. Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to postpone to October 28, 2013, seconded by Dr. Rinne. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

[CA] Agreement between the City of Cheyenne, Transit Division, and Wyoming Department of Transportation for Wyoming Rural Public Transit Program Fiscal Year 2014 (Non-Urbanized Area Formula Grants) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County, Wyoming, for reimbursement of dual-commissioned Juvenile Diversion Officer's salary (revenue to City) -- referred to Finance Committee.

[CA] Master Agreement for Metropolitan Transportation Planning between the Wyoming Department of Transportation, Federal Highway Administration, and the Cheyenne Metropolitan Planning Organization -- referred to Finance Committee.

[CA] Contract Agent and Fiscal Manager Addendum to Master Agreement for the Cheyenne Metropolitan Planning Organization between the City of Cheyenne, Laramie County, Federal Highway Administration, Federal Transit Administration and the Wyoming Department of Transportation -- referred to Finance Committee.

[CA] Memorandum of Understanding - Funding Distribution for Metropolitan Transportation Planning between the Wyoming Department of Transportation and the Casper and Cheyenne Metropolitan Planning Organizations (2011 - 2014 1% Sales Tax, Federal funds) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and The Design Studio, Inc., for construction contract administration for the renovation and expansion of the existing conservatory/greenhouse at the Cheyenne Botanic Gardens (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Grant Award for United States Department of Homeland Security reimbursing the City of Cheyenne for expenditures for security cameras -- referred to Finance Committee.

[CA] Land and Building Lease Agreement between the City of Cheyenne and Verizon Wireless (VAW) LLC d/b/a Verizon Wireless, for the property located at 4500 Dell Range Boulevard, Cheyenne, Wyoming, for antenna space, exterior space, ingress right-of-way, cabling space, and utilities right-of-way -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority, to provide services as described in the Older Americans Act of 1965, as amended -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Peak Wellness Center, Inc., Alcohol Receiving Center, to provide social, non-medical alcohol and drug detoxification services -- referred to Finance Committee.

[CA] Amendment No. 1 to Use Agreement (Contract No. 5963) between the City of Cheyenne and Level 3 Communications, LLC, for limited use of the public right-of-way for the installation of fiber optic communications systems. Motion (per Consent Agenda) carried. (#5963)

[CA] Amendment No. 2 to Contract No. 4173 between the City of Cheyenne, Cheyenne Police Department, and New World Systems Corporation, to upgrade software and hardware law enforcement computer system from an IBM/AS400 platform to a Microsoft platform -- referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 5781 between the City of Cheyenne and Ayres Associates for the addition of strategic grant writing services and associated preliminary engineering design required by grants to enable securing of additional grant funding for the Cheyenne West Edge (Lower Capital Basin) Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-5-14 for furnishing one new mobile command unit for the City of Cheyenne, Police Department (Law Enforcement Grants) -- referred to Finance Committee.

[CA] Consideration of Bid #R-7-14 for furnishing an air compressor for Parks and Recreation Department, Grounds & Facilities Division -- referred to Finance Committee.

[CA] Consideration of Bid #R-6-14 for furnishing one new vacuum truck for the City of Cheyenne, Public Works Department, Street and Alley Division (2011 -2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-7-14 for constructing a wood structure, metal siding building, for the City of Cheyenne, Parks and Recreation Department, Forestry Division (2011 -2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration to purchase one Montrose Precast Restroom Building for the City of Cheyenne, Grounds & Facilities Division from CXT Concrete Precast Buildings, Inc., of Spokane, Washington (Community Development Block grant). Motion (per Consent Agenda) carried (amount not to exceed \$126,000.00).

Announcement was made of the Re-appointment of Earl B. Kincheloe to the Cheyenne Housing Authority Board, to be confirmed October 28, 2013.

Announcement was made of a public hearing to be held October 28, 2013, at 6:00 p.m., in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to hear public comments regarding whether the Mayor and the City Clerk of the City of Cheyenne should be authorized to file an application for grant and/or loan funds under the Wyoming Business Council Business Ready Community Grant and Loan Program for funding for the construction of a rail spur within the Swan Ranch Industrial Park, located generally west of Interstate 25 and south of Interstate 80, Cheyenne, Laramie County, Wyoming. The public is invited to attend and participate.

Under other business:

Pete Laybourn commented on landscaping requirements and areas along Lincolnway that are in need up maintenance and upkeep, such as mowing and weeding, graffiti removal, etc.; spoke in support of the improvements made in Holliday Park relative to the Greenway underpass, and requested City Council review the Keep America Beautiful program, commenting on the City of Casper's beautification program.

Major Dorr commented favorably on the water drainage project currently going on in the west part of Cheyenne, and questioned whether there had been any discussions with potentially interested businesses regarding opening a grocery store on the west side. Mayor Kaysen advised that the City, through various representatives, have talked with major grocery stores asking them to look at Cheyenne, specifically the area defined, with no success to date. During further comments, Mayor Kaysen stated discussions had also been held about a cooperative effort (i.e. potential to form a co-op) when the Safeway Store closed on Pioneer. Pete Laybourn advised he was involved in a past effort on how to create a co-op in Cheyenne and in the meetings and discussions, they learned it was a very challenging endeavor and cost-wise a co-op could not compete financially with other major grocery/food stores.

Mr. Shanor questioned the public comment process under other business at City Council meetings as it pertains to items on the meeting agenda that had been previously discussed or acted upon earlier in the meeting, and requested City Attorney staff research the topic.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:06 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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